

16. *Sahagian v. Beaver Medical Group, P.C., et al*, Case No. CIVSB2430006
Motion to be Relieved as Attorney of Record for Plaintiffs
7/15/26, 9:00 a.m., S-17

The Court would **CONTINUE** or seek in camera discussion of the facts in support.

Here, the Ray & Seb LLP firm seeks to be relieved as counsel for Plaintiff. The declaration submitted in support only sets forth the conclusion that the relationship has broken down such that the motion is necessary. While the Court is cognizant of the protections related to attorney-client relationship, the Court will need *some* sort of averment establishing good cause pursuant to rule 1.16(b) of the Rules of Court. As currently worded, the submitted declaration is insufficient.

17. *Meggs v. FCA US, LLC, et al*, Case No. CIVSB2401106
Defendants' Motion to Compel Initial Responses to Requests for Production, Set One
7/15/26, 8:30 a.m., S-17

The Court would **GRANT** this unopposed motion. Both objection-free responses to Requests for Production, Set One, *and* sanctions in the amount of \$608 will be due within twenty days.

A failure to oppose a motion may be deemed consent to the granting of the motion. (Rules of Court, rule 8.54(c); also *Giles v. Horn* (2002) 100 Cal.App.4th 206,228 [challenge to judicial notice motion forfeited by failure to file opposition].) Here, it appears Plaintiff has conceded the validity of the arguments.

18. *Robertson v. City of Rialto, et al*, Case No. CIVSB2325118
Plaintiff's Motion to Compel Further Responses from City to Requests for Production, Set Two
Plaintiff's Motion to Compel Further Responses from City to Special Interrogatories, Set Two
7/15/26, 9:00 a.m., Dept. S-17

Tentative Rulings

As to the Motion to Compel Further Responses to RFP2: The Court would **DENY** as untimely and because movant failed to supply an appropriate separate statement. The Court would impose sanctions against Plaintiff in the amount of \$1,500, due within thirty days.

As to the Motion to Compel Further Responses to SROG2: The Court would likewise **DENY** as untimely and because movant failed to supply an appropriate separate statement. The Court would impose sanctions against Plaintiff in the amount of \$1,500, likewise due within thirty days.

Case Summary

In essence, this is an invasion of privacy case. Plaintiff, who is the mayor of Rialto, alleges that Defendant City and its Police Department has permitted at least ten unauthorized California Law Enforcement Telecommunications System (CLETS)¹ searches involving her from 2015 to 2020. She alleges that the unauthorized CLETS searches were done to determine her residency as an elected official and for other unauthorized purposes. Thus, she filed suit against the City on October 6, 2023, alleging causes of action for (1) intrusion into private affairs; (2) violation of the Comprehensive Computer Data and Access Fraud Act; (3) negligent supervision; (4) violation of the Information Practices Act; (5) intentional infliction of emotional distress (IIED); (6) negligent infliction of emotional distress (NIED); and (7) violation of the Bane Civil Rights Act.

Relevant here, on October 7, 2025, Plaintiff served Defendant City with her second set of discovery requests, including the at-issue Requests for Production, Set Two (RFP1) and Special Interrogatories, Set Two (SROG2). (Hawkins Decl., ¶¶4 & Exhs. B-C.) Responses to those discovery requests were due November 7, 2025. The City served its verified responses on January 22, 2026, by email service. (Hawkins Decl., ¶7 & Exh. H.) This motion followed.

Analysis

Timeliness: Here, while the motion is directed at the City and the Police Department, the discovery is directed at the City alone. (Hawkins Decl., Exhs. B-C.) Regardless, the City served its verified responses on January 22, 2026, by email service. (Hawkins Decl., ¶7 & Exh. H.) Forty-five days later fell on Sunday, March 8, 2026. Thus, accounting for the Sunday holiday and two extra court days due to email service, Plaintiff's deadline to bring a motion to compel further responses was March 11, 2026. (Code Civ. Proc., §§ 10, 12a, 1010.6(a)(3)(B).) The motions were filed on March 23rd.

The email string between counsel confirms that defense counsel did *not* agree to a proposed two-week extension for the Plaintiff's motion. (Hawkins Decl., Exh. J.) Also, Hawkins concedes that the parties did not reach a "valid stipulation" to extend Plaintiff's time to bring a motion to compel. (Hawkins Decl., ¶10.) Thus, because the motions were not filed until March 23, 2026, they are untimely. Defendants raised timeliness in their oppositions; thus, the issue has not been waived.

The timing deadline on motions to compel further responses is *mandatory*, and a court may not entertain a belated motion to compel. (*Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 683 [construing former CCP 2030 regarding interrogatories].) An untimely motion to compel discovery constitutes a waiver of any right to compel a further response and such statutory provisions have been held at least "quasi-jurisdictional" in the sense that they

¹CLETS is a network used by law enforcement to access national databases such as FBI and DMV records, among others.

divest the court of authority to rule on untimely motions to compel other than to deny them. (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1408-1410 [emphasis in original].)

Separate Statements: Even in the alternative, the Court would deny the motions for failure to provide appropriate separate statements: A separate statement provides all the information necessary to understand each discovery request and all the responses to it that are at issue; the separate statement must be full and complete so that no person is required to review any other document to determine the full request and the full response. (Cal. Rules of Court, rule 3.1345(c).)

For each, where a further response is requested, the separate statement “must include,” inter alia, the text of the question, the text of each response, answer, or objection, and the factual and legal reasons for compelling further responses, answers, or production. (Cal. Rules of Court, rule 3.1345(c)(1)-(3).) A separate statement must be “a separate document filed and served with the discovery motion.” (Cal. Rules of Court, rule 3.1345(c).)

Here, Plaintiff did not supply separately-filed and separately served separate statements. Instead, purported statement are attached at the end of the lengthy motion filings. In examining those pages, the “separate statement” is not full and complete because, inter alia, it does not identify the discovery type or set at issue (e.g. special interrogatories or production requests) and, starting at number 76, it does not include the verbatim response. The failure to supply a useful separate statement that complies with court rules is a separate basis for denying the motions.

29. *Rincon v. Arctic Cooling Systems, LLC, et al*, Case No. CIVSB2205435
Motion for Final Approval of Class Action Settlement
7/15/26, 1:30 p.m., S-17

The Court would **GRANT**.

Here, Plaintiff Salazar submitted a notice to the Labor and Workforce Development Agency (LWDA) on September 16, 2021, in anticipation of a claim for civil penalties pursuant to the Private Attorneys General Act (PAGA). On March 22, 2022, Plaintiff Gonzalez sent her notice to the LWDA.

On November 23, 2021, Plaintiff Salazar filed his claim for civil penalties pursuant to PAGA (CIVSB2134173). Shortly thereafter, on January 18, 2022, Plaintiff Rincon filed his claim for civil penalties pursuant to PAGA (CIVSB2205435). Thereafter, Plaintiff Rincon filed this instant case as a putative wage-and-hour class action (CIVSB2205435). On June 9, 2025, this instant was amended in furtherance of this proposed settlement, folding the various Plaintiffs and claims into this single action.